

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2023CUOE015868: AGUIRRE VS THE CHEESECAKE FACTORY
08/27/2026 in Department 44
Motion to Compel Further Response to Special Interrogatory NO. 65

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff Manuel Aguirre’s Amended Motion to Compel Further Response to Special Interrogatory No. 65

Tentative Ruling:

Plaintiff Manuel Aguirre’s Amended Motion to Compel Further Response to Special Interrogatory No. 65 is GRANTED in part.

Defendants’ objections to Special Interrogatory No. 65 are OVERRULED to the extent they are asserted as a basis for withholding the identifying and contact information of putative class members who do not opt out of disclosure through the parties’ agreed *Belaire-West* procedure.

Defendants shall cause the parties’ agreed *Belaire-West* notice to be disseminated through the agreed neutral administrator within 10 calendar days after service of notice of this ruling. Putative class members shall receive the agreed 30-day opt-out period.

Within five court days after expiration of the opt-out period, Defendants shall serve a verified further response to Special Interrogatory No. 65 and provide Plaintiff’s counsel with the

responsive identifying and contact information, as provided for in the agreed notice, for all responsive persons who have not timely opted out.

Plaintiff's request that Defendants provide the requested contact information within five days of this ruling is DENIED.

Defendants' request that the Court deny or continue the motion until the October 28, 2026 hearing on their motion to stay is DENIED. No stay is presently in effect. This ruling is without prejudice to the effect of any stay the Court may subsequently order upon consideration of Defendants' separately noticed motion.

Plaintiff's request for monetary sanctions of \$3,665 against Defendants and attorneys Darianne Young and Joanna MacMillan is DENIED.

Plaintiff to give notice.

I. Background

A. Factual Background

Plaintiff Manuel Aguirre brings this putative wage-and-hour class action against Defendants The Cheesecake Factory Restaurants, Inc. and The Cheesecake Factory Incorporated. Plaintiff alleges Defendants misclassified him and similarly situated employees as exempt. Plaintiff alleges he was employed as a Kitchen Manager, that his duties were primarily manual rather than managerial, and that Defendants exercised control over the terms and conditions of his and other putative class members' employment. (SAC ¶¶ 80-92.)

The SAC defines "Class Two" to include all current and former Kitchen Managers, or persons with similar job titles or duties, allegedly misclassified as exempt who worked for Defendants in California during the four years preceding the filing of the complaint through final judgment. (SAC ¶ 76.) Plaintiff alleges the class exceeds 50 persons and that its membership is readily ascertainable from Defendants' employment records. (SAC ¶ 78.)

Plaintiff alleges that the asserted misclassification resulted in, among other things, unpaid overtime and minimum wages, missed meal and rest-period premiums, inaccurate payroll records, unreimbursed expenses, and unpaid wages at separation. (See SAC ¶¶ 80-112.)

B. Procedural Background

On January 26, 2026, the Court denied Defendants' motion to compel arbitration, finding Plaintiff had raised a factual dispute concerning the existence of the asserted arbitration agreement and Defendants had not carried their burden of proving that agreement existed.

On February 18, 2026, Plaintiff served Special Interrogatories, Set Three. Special Interrogatory No. 65 asks:

“Please IDENTIFY each PERSON who works and/or worked for YOU in the State of California as a CLASS MEMBER at any time during the RELEVANT TIME PERIOD.”

Defendants served their response on April 17, 2026. They objected on grounds including vagueness and ambiguity, overbreadth, relevance, privacy, compoundness, and the existence of arbitration agreements and class waivers. Subject to those objections, Defendants stated they would meet and confer concerning the scope of the request “subject to a stipulated protective order and an agreed-upon Belaire-West notice and opt-out procedure for putative class members.”

The parties thereafter engaged in extensive discussions concerning the *Belaire-West* notice. Plaintiff’s counsel states that he initially sent a proposed notice on March 23, 2026 and followed up repeatedly through June. Defendants agreed to extend Plaintiff’s deadline to bring the present motion through July 30, 2026.

Plaintiff filed the motion on July 13, 2026 and electronically served the motion, separate statement, supporting declaration, and proposed order that day. On July 29, Plaintiff filed an amended notice specifying his request for \$3,665 in monetary sanctions against Defendants and attorneys Darianne Young and Joanna MacMillan.

The circumstances changed after the original motion was filed. Defendants state, and Plaintiff does not dispute in reply, that the parties finalized the language of the *Belaire-West* notice on July 24, 2026. Defendants now expressly acknowledge that putative class-member contact information is generally discoverable and do not contend it will never be produced. Their position is that the notice and production should await disposition of their pending motion to stay.

The agreed notice provides a 30-day period in which recipients may opt out of disclosure and identifies ILYM Group, Inc. as the neutral notice administrator. Persons who do not timely opt out will have their name, address, and telephone number disclosed to Plaintiff’s counsel.

Defendants filed a notice of appeal from the January 26 arbitration ruling on July 24, 2026. On August 4, Defendants filed a separately noticed motion under Code Civ. Proc. § 1281.4 to stay the action pending appeal. That motion is set for hearing October 28, 2026.

Defendants filed their opposition to the present discovery motion on August 14. They request that the Court deny the motion without prejudice or continue it until the October 28 stay hearing; alternatively, they ask the Court to defer implementation of the *Belaire-West* process until the stay motion has been decided.

Plaintiff filed his reply on August 20. He contends that Defendants’ appeal was untimely, that no stay presently exists, and that Defendants therefore remain obligated to participate in discovery. He continues to seek a further response within five days and \$3,665 in sanctions.

II. Preliminary Matters

A. Timeliness and Meet and Confer

The motion is timely. A motion to compel further responses to interrogatories ordinarily must be brought within 45 days after service of the verified response, subject to any later date agreed to in writing. (Code Civ. Proc. § 2030.300(c).) Defendants served their response on April 17, 2026, but agreed in writing to extend Plaintiff's deadline to July 30, 2026. Plaintiff filed the motion July 13 and the amended notice July 29.

The record also establishes adequate meet-and-confer efforts for purposes of Code Civ. Proc. §§ 2016.040 and 2030.300(b). Indeed, the parties' continued discussions ultimately resulted in an agreed *Belaire-West* notice.

B. Defendants' Ex Parte Application for Leave to File Surreply

On August 21, 2026, Defendants filed an ex parte application for leave to file a surreply addressing evidence and argument raised in Plaintiff's reply concerning the timeliness of Defendants' appeal.

On August 26, 2026, the Court denied that application without prejudice and stated that it would review and consider the moving papers, opposition, and reply papers.

III. Discussion

A. Legal Standard: Motion to Compel Further Response to Interrogatory

A party responding to interrogatories must answer each interrogatory "as complete and straightforward as the information reasonably available to the responding party permits." (Code Civ. Proc. § 2030.220(a).)

The propounding party may move for a further response where "[a]n answer to a particular interrogatory is evasive or incomplete" or "[a]n objection to an interrogatory is without merit or too general." (Code Civ. Proc. § 2030.300(a).)

Discovery generally extends to any nonprivileged matter relevant to the subject matter of the action, including "the identity and location of persons having knowledge of any discoverable matter." (Code Civ. Proc. § 2017.010.)

In a representative action, identifying and contact information for potential class members ordinarily falls within this broad scope of discovery. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 541, 544 [contact information for persons plaintiff seeks to represent is ordinarily within the proper scope of discovery and an essential first step in prosecution of a representative action]; *Pioneer Electronics (USA), Inc. v. Superior Court* (2007) 40 Cal.4th 360, 373 [contact information regarding potential class members generally discoverable]; *Belaire-West Landscape*,

Inc. v. Superior Court (2007) 149 Cal.App.4th 554, 561-562 [approving opt-out procedure to accommodate privacy interests before disclosure of employee contact information].)

The Court also retains authority to establish the sequence and timing of discovery “for the convenience of parties and witnesses and in the interests of justice.” (Code Civ. Proc. § 2019.020(b).)

If a motion to compel further interrogatory responses is granted, the Court must impose a monetary sanction against the party, person, or attorney who unsuccessfully made or opposed the motion unless it finds substantial justification or that other circumstances make imposition of the sanction unjust. (Code Civ. Proc. § 2030.300(d).) Substantial justification means a position that is “clearly reasonable because it is well-grounded in both law and fact.” (*Pollock v. Superior Court* (2023) 93 Cal.App.5th 1348, 1358.)

B. Further Response to Special Interrogatory No. 65

The motion is GRANTED.

The information is directly relevant to the allegations and proposed class pleaded in the SAC. Plaintiff specifically seeks to represent California Kitchen Managers and persons performing similar duties who allegedly were misclassified as exempt. (SAC ¶ 76.) He alleges that the identity of the proposed class is ascertainable through Defendants’ employment records. (SAC ¶ 78.) Thus, the requested information bears directly on investigation of the claims and class-certification issues.

Defendants’ original objections do not justify withholding the information. Special Interrogatory No. 65 is sufficiently understandable when read with the defined terms. Its request for the identities of defined putative class members is not rendered irrelevant or impermissibly overbroad merely because it encompasses a statewide class. *Williams* rejected a similar attempt to restrict precertification contact discovery and explained that the identities and contact information of persons the plaintiff seeks to represent are ordinarily within the scope of discovery. (*Williams*, supra, at 541, 544.)

Nor do privacy concerns warrant complete nondisclosure. *Pioneer Electronics* and *Belaire-West* recognize that the privacy interests implicated by disclosure of names and ordinary contact information can appropriately be addressed through an opt-out notice. (*Pioneer Electronics*, supra, at 373; *Belaire-West*, supra, at 561-562.) The parties have now agreed upon precisely such a procedure.

Defendants’ objection based upon arbitration agreements and class-action waivers likewise does not establish that the requested information is categorically undiscoverable. No order has determined that the absent putative class members are bound to arbitrate the claims asserted here, and Defendants now concede in any event that the information is ordinarily discoverable and will be produced if the action proceeds.

Indeed, the parties no longer have a genuine dispute regarding discoverability. Defendants characterize the issue as solely one of timing and expressly represent that, if their stay motion is denied, they will promptly implement the agreed *Belaire-West* process and produce the resulting information. The portion of Plaintiff's motion seeking an order requiring the parties to agree upon a *Belaire-West* notice is therefore moot.

C. The Pending Appeal and Motion to Stay Do Not Require Deferral of This Discovery Motion

Defendants principally contend that the Court should postpone discovery until their October 28 motion to stay is decided. The Court declines to do so.

Defendants' notice of appeal does not itself stay the action. Code Civ. Proc. § 1294(a), expressly eliminates an automatic stay arising from an appeal of an order denying a petition to compel arbitration. *Doe v. Second Street Corp.*, supra, at 584, similarly rejects the proposition that Code Civ. Proc. § 1281.4 creates an interim automatic stay merely upon a party's request for stay relief. Thus, at present there is no order staying discovery.

Defendants have separately moved for a stay under Code Civ. Proc. § 1281.4 and contend that *Smith v. Superior Court* (1962) 202 Cal.App.2d 128, 131 requires a stay while their arbitration application remains pending on appeal. Their motion relies on *Smith* and argues that the 2023 amendment to Code Civ. Proc. § 1294 eliminated only the automatic stay under Code Civ. Proc. § 916, without altering Code Civ. Proc. § 1281.4. That issue is squarely presented by the separately noticed October 28 motion and need not be prejudged here.

What matters for the present motion is that no stay has yet been entered. Continuing the discovery motion until October 28 would effectively provide Defendants with the interim stay they have not yet obtained.

The existing class-certification schedule also weighs against that result. The parties jointly represented that additional time was necessary to complete the *Belaire-West* process and exchange class contact information so that the parties could more fully evaluate class-certification issues. The class-certification hearing has been continued to December 17, 2026, with Plaintiff's moving papers due 60 days before the hearing. Waiting until the October 28 stay hearing even to begin the agreed 30-day notice process would mean the contact information could not be obtained before Plaintiff's class-certification motion is due.

Accordingly, the Court will allow the already-agreed privacy procedure to proceed while leaving the October 28 motion to stay for determination on its own merits. If the Court subsequently grants a stay, that order will govern further proceedings prospectively.

Plaintiff's request for production within five days, however, is not granted. The parties have agreed that putative class members will receive 30 days to opt out before their contact information is disclosed. The Court elects to enforce that agreed procedure rather than order immediate disclosure.

D. Sanctions

Plaintiff seeks \$3,665 in sanctions against Defendants and attorneys Darianne Young and Joanna MacMillan. Counsel calculates the request as five hours at \$733 per hour.

Although the motion is granted in substantial part, sanctions are denied.

Circumstances materially changed after the motion was filed. The parties continued to meet and confer and ultimately agreed upon the *Belaire-West* notice. Defendants now concede the general discoverability of the contact information and represent that their objection is limited to the timing of disclosure.

Moreover, although the Court rejects Defendants' request to postpone the discovery pending the October 28 hearing, their position is not so lacking in legal or factual support as to require sanctions. Defendants have taken a statutory appeal, have filed a noticed motion under Code Civ. Proc. § 1281.4, and rely on existing authority construing an arbitration application as remaining "undetermined" during an appeal. (*Smith v. Superior Court*, supra, at 131.) The effect of amended Code Civ. Proc. § 1294 upon the relief sought under Code Civ. Proc. § 1281.4 is the subject of their pending stay motion. The Court can deny Defendants' request for interim deferral without finding their position sanctionable.

The Court therefore finds Defendants' opposition was substantially justified and, alternatively, that the parties' subsequent agreement on the notice procedure and the pending statutory stay issue constitute circumstances making an award of sanctions unjust. (Code Civ. Proc. § 2030.300(d); *Pollock*, supra, at 1358.)